



**Employee Handbook –
Colorado Addendum
January 2026**

Colorado Addendum

Jury Duty

We encourage you to meet your civic responsibility when you are called for jury duty. If you receive a summons for jury duty, present it to your supervisor.

You receive full pay up to \$50.00 per day for the first three days of jury duty if you are scheduled to work and are a nonexempt employee. Jury duty beyond three days is without pay from the Company for nonexempt employees. However, beginning with the fourth day and thereafter, the juror is paid \$50.00 per day by the State of Colorado for state district or county courts. You are expected to report to work if you are excused from jury duty during normal work hours.

Overtime

Non-exempt Colorado employees are entitled to overtime pay at one and one-half (1.5) times their regular rate of pay for all hours worked in excess of 12 hours in a day, 12 hours consecutively (without regard to the starting and ending time of the workday), or 40 hours per workweek, whichever calculation results in the greater payment of wages. Time paid but not worked, such as sick time or paid time off (PTO), will not be counted as hours worked in calculating hours worked for purposes of determining if overtime pay is due.

Please review the Colorado Overtime and Minimum Pay Standards (COMPS) Order for information regarding your rights under Colorado law, available below.

Please contact the Human Resources if you have any questions about overtime requirements or the COMPS Order.

Both the COMPS Order poster, provided by the Colorado Department of Labor and Employment, as well as the text of that poster, are included in the policy to ensure that employees have access to all the required information. A copy of the poster is included at the end.

This poster is from the Colorado Department of Labor and Employment, online at <https://cdle.colorado.gov/posters-0>

Colorado Department of Labor and Employment

Colorado Wage & Hour Rights & Responsibilities

The COMPS Order (Colorado Overtime & Minimum Pay Standards) Poster & Notice

Effective 1/1/25; Use new version released by each December.

Colorado Minimum Wage: \$14.81 per hour, or \$11.79 for tipped employees, in 2025, updated yearly (COMPS Rule 3)

- Must pay at least minimum wage for all time worked, whether by hour, salary, commission, piece rate, etc.
- Use the highest minimum wage applicable; [ColoradoLaborLaw.gov](https://coloradolaborlaw.gov) lists all local minimum wages
- 15% lower is allowed for unemancipated minors — but not for some local minimum wages.

Overtime: 1½ times regular rates after 40 weekly hours, or 12 daily or 12 consecutive (Rule 4)

- Can't give time off instead of overtime pay; can't average overtime and non-overtime weeks (or days)
- Agriculture: Overtime after 48 hours (56 at some highly seasonal sites); extra breaks and pay on long days
- Some (not all) jobs in health, ski, and heavy vehicles are partly or fully exempt (Rules 2.3-2.4)

Meal Periods: 30 minutes uninterrupted & duty-free, in shifts over 5 hours (Rule 5.1)

- Can be unpaid only for employees completely relieved of duty and allowed to do personal activities
- If work doesn't allow uninterrupted meal periods: must allow eating on duty, on paid time
- As much as practical, meal periods must be at least 1 hour after starting shifts, and 1 hour before ending

Rest Periods: 10 minutes, paid, every 4 hours (Rule 5.2)

#Work Hours:	Up to 2	>2, up to 6	>6, up to 10	>10, up to 14	>14, up to 18	>18, up to 22	>22
#Rest Periods:	0	1	2	3	4	5	6

- Need not be off-site, but must not include work, and should be in the middle of the 4 hours if practical
- Rest periods count as time worked, including for minimum wage and overtime

- Extra pay is owed for rest period time not authorized or permitted, including for employees not paid hourly
- Break rules differ for some agricultural work (Rule 2.3 and the Agricultural Labor Conditions Rules)

Deductions, Credits, Charges, & Withheld Pay (Rule 6 and Colorado Wage Act)

- Final pay: Owed promptly (if a termination by employer) or at next pay date (if employee resigned)
- Unused vacation: Must pay to departing employees, even if fired for cause or resigned without notice
- Tip credit: Can lower hourly pay up to \$3.02 if tips (not service charges) aren't diverted to untipped staff
- Meals: Can charge cost or value (without profit) of voluntarily accepted meals
- Lodging: Can charge \$25-\$100 weekly (by housing type) if voluntary and primarily for employee benefit
- Uniforms: Can't charge or require deposits for special uniforms, special cleaning, or ordinary wear and tear
- Other deductions: Only for items in CRS 8-4-105; not for poor work, breakage, quitting without notice, etc.

Time Worked: All on-duty or on-premises time that must be paid (Rule 1.9)

- Cleanup or setup (examples: put on or remove clothes, or gear, worn only at work)
- Checking in or out (timeclock, security or safety screening, etc.), or waiting to do so
- Receiving or sharing work information, or wait for tasks – but not just off-duty time on premises
- Travel for employer benefit – but not normal commuting (Rule 1.9.2)
- Sleep time required to be on-site – but not if lengthy and uninterrupted (Rule 1.9.3)

Exemptions from COMPS (Rule 2.2 lists all; highlights are below)

- Executive/supervisor, administrator, or professional: \$56,485 (updated yearly) in salary (not hourly pay)
- Other high-level work: non-manual jobs paid 2¼ times the above salary; 1/5 owners who actively manage
- Some (not all) salespeople, computer professionals, drivers, camp/outdoor ed staff, or property managers
- Duties to pay wages, including most limits on deductions, still apply if exempt from COMPS

Employer Responsibilities (Rule 7)

- Give employees pay statements (total pay, rate, tips, credits, and time worked), and keep for 3 years
- Display this poster/notice where easily seen (or give to employees); also include in any handbook/manual
- Use translations (available from this Division) of this poster/notice for employees with limited English
- Not giving (or undercutting) posters or notices may disallow employer credits, deductions, or exemptions
- Individuals with control over work may be liable for wages and violations, even at incorporated employers

Complaint & Anti-Retaliation Rights (Rule 8)

- File complaints in the Division or Court, or send the Division confidential tips
- Retaliation, or actions interfering with rights, may yield fines or other consequences
- Immigration status is irrelevant to these rights, and can't be used to interfere with rights

Contact Us:

DIVISION OF LABOR STANDARDS & STATISTICS

303-318-8441 / 888-390-7936 / cdle_labor_standards@state.co.us (English or Spanish)

*For all
laws,
guidance,
&
complaint
s:*



ColoradoLaborLaw.gov

*Spanish
guidance
&
complaint
s:*



[LeyesLaboralesDeColor
ado.gov](http://LeyesLaboralesDeColorado.gov)

*This
notice
in other
language
s:*



[cdle.colorado.gov/Labo
rStandardsPosters](http://cdle.colorado.gov/LaborStandardsPosters)



COLORADO WAGE & HOUR RIGHTS & RESPONSIBILITIES:
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For all laws,
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complaints:
leyeslaboralesDeColorado.gov

This notice
in other
languages:
cdle.colorado.gov/LaborStandardsPosters

Breaks

Rest Breaks. Non-exempt employees are authorized and permitted paid ten- (10-) minute rest periods for each four (4) hours of work, or major fraction of that time. For purposes of this policy, "major fraction" means any time greater than two (2) hours. An additional rest period is required for any period that rounds up to four (4) hours. For example, a shift of two (2) hours or fewer requires no rest periods, a two (2) hour and one- (1-) minute shift requires a single rest period, and a six- (6-) hour shift also requires a single rest period, but a six- (6-) hour and one (1) minute shift requires two (2) rest periods.

Rest breaks should be taken as close to the middle of each work period of four (4) hours or major fraction thereof as is practical. Shorter or longer shifts and other factors that make such scheduling impractical may alter this general timing. Employees do not need to obtain approval from or notify their supervisor when taking a rest break. Employees are encouraged to take their rest breaks; they are not expected to and should not work during their rest breaks. Employees are paid for all rest break periods and do not need to clock out when taking a rest break.

Rest breaks may not be combined with each other or with the meal period. In addition, rest breaks may not be taken at the beginning or end of the workday to arrive late or leave early. Each rest break must be a separate break, meeting the requirements described above. If any work is performed during a rest break, or if the rest break is interrupted for any work-related reason, the employee is entitled to another uninterrupted paid rest break.

Meal Periods. Non-exempt employees who work more than five (5) hours in a workday are provided an unpaid, off-duty and uninterrupted meal period of at least 30 minutes. Employees are responsible for scheduling their own meal period, but should confirm them with their supervisor(s). To the extent practical, meal periods must be at least one (1) hour after starting and one (1) hour before ending shifts.

If an employee's type of work makes an uninterrupted, duty-free meal period impractical, the employee will be permitted to eat while working and paid for such time. Employees will be informed by their supervisor if they will be provided with on-duty meal periods.

When scheduling meal periods, employees should try to anticipate their workflow and deadlines. During a meal period, employees are relieved of all duties and should not work during this time. When taking a meal period, employees should completely stop working for at least 30 minutes. Employees are prohibited from working "off the clock" during their meal periods.

Those employees who use a time clock must clock out for their meal periods. Employees are required to clock back in and promptly return to work at the end of any meal period. Employees who record their time manually must accurately record their meal periods by recording the beginning and end of each work period. Unless otherwise directed by their supervisor in writing, employees are not required to get approval from or notify their supervisor when taking a meal period. Employees are to immediately notify Human Resources and/or their supervisor if they believe that they are prevented by the nature of their work from taking a timely and/or complete meal period.

No Working During Rest Breaks and Meal Periods. Non-exempt employees are completely relieved of all work duties and responsibilities during their rest breaks and meal periods. All rest breaks and meal periods must be taken outside employees' work areas, such as in a break room. Employees may leave the premises during meal periods, but may not leave the premises during rest periods. Employees should not visit or socialize with employees who are working while taking their rest break or meal period. Employees are required to notify Human Resources immediately if they believe they are being pressured or coerced by any manager, supervisor, or other employee to forego any portion of a provided rest break or meal period. Additionally, employees are required to notify Human Resources immediately if they believe their workload, schedule, deadline, or other quota make rest break or meal periods infeasible.

Summary Chart. Below is a chart that generally summarizes the number of rest breaks and meal periods provided to non-exempt employees (these figures may vary depending on the timing of an employee's breaks).

Hours of Work	Rest Breaks	Meal Breaks
2 or fewer hours	0	0
Over 2 and up to 5 hours	1	0
Over 5 and up to 6 hours	1	1
Over 6, and up to 10 hours	2	1
Over 10, and up to 14 hours	3	1
Over 14, and up to 18 hours	4	1
Over 18, and up to 22 hours	5	1
Over 22 hours	6	1

Paid Family and Medical Leave

Eligibility Requirements

Colorado employees who have a qualifying condition and who earned \$2,500 over the previous year for work performed in Colorado will be eligible for paid family and medical leave, and to receive family and medical leave insurance benefits while taking paid family and medical leave, pursuant to Colorado's Family and Medical Leave Insurance (FAMLI) Program.

All employees are required to contribute to the FAMLI Program and will be subject to payroll deductions not to exceed the maximum employee premium rate established by law.

Entitlement

Eligible employees are entitled to up to 12 weeks of paid leave per year, except that benefits are payable up to:

1. An additional four (4) additional weeks to an eligible employee with a serious health condition related to pregnancy complications or childbirth complications; and
2. For claims arising on or after January 1, 2026, an additional 12 weeks to an eligible employee who has a child receiving inpatient care in a neonatal intensive care unit for the duration that the child is receiving care in the neonatal intensive care unit.

Colorado's FAMLI leave is available for the following circumstances:

- Caring for a new child during the first year after the birth, adoption, or foster care placement of that child;
- Caring for a family member with a serious health condition;
- For the employee's own serious health condition;
- Because of any qualifying exigency leave; or

- For safe leave.

"Family member" means:

1. Regardless of age, a biological, adopted, or foster child; stepchild or legal ward; a child of a domestic partner; a child to whom the covered employee stands in loco parentis; or a person to whom the covered employee stood in loco parentis when the person was a minor;
2. A biological, adoptive, or foster parent, stepparent, or legal guardian of a covered employee or covered employee's spouse or domestic partner or a person who stood in loco parentis when the covered employee or covered employee's spouse or domestic partner was a minor child;
3. A person to whom the covered employee is legally married under the laws of any state, or a domestic partner of a covered individual as defined in Colo. Rev. Stat. § 24-50-603(6.5);
4. A grandparent, grandchild, or sibling (whether a biological, foster, adoptive, or step-relationship) of the covered employee or covered employee's spouse or domestic partner; or
5. As shown by the covered employee, any other individual with whom the covered employee has a significant personal bond that is or is like a family relationship, regardless of biological or legal relationship.

"Caring for a new child" means caring, bonding, and providing the basic needs of a child that is younger than 18 and sometimes up to the age of 21 if still under jurisdiction of the juvenile court. Leave can be used once during the fostering and adopting of the same child. When using leave to "care for a new child," benefits are limited to parents and individuals standing in loco parentis to the child.

"Qualifying exigency leave" means leave based on a need arising out of a covered employee's family member's active-duty service or notice of an impending call or order to active duty in the armed forces. This type of leave includes things like providing for the care or other needs of the military member's child or other family member, making financial or legal arrangements for the military member, attending counseling, attending military events or ceremonies, spending time with the military member during a rest and recuperation leave or following return from deployment, or making arrangements following the death of the military member.

A "serious health condition" means an illness, injury, impairment, pregnancy, recovery from childbirth, or physical or mental condition that involves inpatient care in a hospital, hospice, or residential medical care facility, or continuing treatment by a health care provider.

"Safe leave" means any leave needed because the covered employee or the employee's family member is the victim of domestic violence, the victim of stalking, or the victim of sexual assault or abuse if the covered employee is using the leave from work to protect the covered individual or the covered employee's family member by:

1. Seeking a civil protection order to prevent domestic violence;
2. Obtaining medical care or mental health counseling or both for them or for their children to address physical or psychological injuries resulting from the act of domestic violence, stalking, or sexual assault or abuse;
3. Making their home secure from the perpetrator of the act of domestic violence, stalking, or sexual assault or abuse, or seeking new housing to escape said perpetrator; or
4. Seeking legal assistance to address issues arising from the act of domestic violence, stalking, or sexual assault or abuse, or attending and preparing for court-related proceedings arising from said act or crime.

Substitution of FAMLI Benefits with Semantic Arts Benefits

Employees may choose to use sick leave or other paid time off before using FAMLI benefits, but are not required to do so. The Company and employees may mutually agree to supplement FAMLI benefits with sick leave or other paid time off in order to provide full wage replacement.

Use of Leave

Leave may be taken continuously, intermittently, or in the form of a reduced schedule. A covered employee may take intermittent leave in increments of either one (1) hour or shorter periods if consistent with the increments the Company typically uses to measure employee leave, except that benefits are not payable until the covered employee accumulates at least eight (8) hours of family and medical leave insurance benefits. FAMLI wage replacement benefits will be paid at a rate of up to 90% of the employee's average weekly wage with lower wage earners receiving a higher percentage. Benefits are calculated on a sliding scale using the employee's average weekly wage from the previous five (5) calendar quarters in relation to the average weekly wage for the State of Colorado and may increase over time. Potential benefits can be estimated by using the calculator available at famli.colorado.gov.

Employee Notice to the Company

When the need for leave is foreseeable, individuals must provide not less than 30 days' notice prior to the start of their planned leave to the Company when practicable and shall make a reasonable effort to schedule leave so as not to unduly disrupt the operations of the Company. When the need for leave is unforeseeable or providing 30 days' notice is not

possible, employees must provide notice as soon as possible and have up to 30 days after the leave has begun to apply for FAMLI benefits.

Employee Application to the FAMLI Division

Employees or their designated representatives will apply for FAMLI benefits by submitting an application, along with other required documents that support the need for leave. The Division of Family and Medical Leave Insurance Division of the Colorado Department of Labor and Employment (FAMLI Division) will establish reasonable procedures and forms for filing claims for benefits and will specify what supporting documentation is necessary to support a claim for benefits, including any documentation required from a health care provider for proof of a serious health condition and any documentation required by the FAMLI Division with regards to a claim for safe leave. Instructions on how to apply for benefits are available at famli.colorado.gov.

Employees will submit the application directly to the FAMLI Division. Applications may be submitted in advance when the need for qualified leave is foreseeable. Approved applications will be paid by the FAMLI Division within two (2) weeks after the claim is properly filed, and every two (2) weeks thereafter. Employees can appeal claim determinations to the FAMLI Division.

Employees who attempt to defraud the FAMLI program may be disqualified from receiving benefits.

Job Benefits and Protection

Employees are entitled to the same healthcare benefits while on FAMLI leave but also remain responsible for paying for those benefits in the same amounts as before the leave began.

Employees who have worked for the Company for at least 180 days are entitled to return to the same position, or an equivalent position, upon their return from FAMLI leave. Otherwise, employees taking FAMLI leave are not guaranteed job reinstatement unless they qualify for such reinstatement under federal and/or state leave laws or other applicable laws.

Interaction with Other Leave Policies

FAMLI leave is designed to run concurrently with the federal Family and Medical Leave Act (FMLA) and Colorado Family Care Leave pursuant to Colo. Rev. Stat. § 8-13.3-203. If FAMLI leave is used for a reason that also qualifies as leave under FMLA or Colorado Family Care Leave, then the leave also may count as FMLA leave or Colorado Family Care Leave used, as applicable. Employees may choose to use sick leave or other employer-provided paid time off before using FAMLI benefits, but are not required to do so. If mutually agreed upon

with the Company, employees may supplement FMLI benefit payments with sick leave or other paid time off in order to receive full wage replacement.

Questions and/or Complaints about FMLI Leave

If employees have questions regarding this FMLI policy, they should contact Human Resources. For questions about determinations by the FMLI Division on leave eligibility, entitlement, and/or benefits, employees should contact the FMLI Division directly. The Company is committed to complying with the FMLI and, whenever necessary, shall interpret and apply this policy in a manner consistent with the FMLI.

The FMLI makes it unlawful for employers to discriminate, retaliate, threaten to retaliate, or interfere with the exercise of any rights under the FMLI. In addition, employers may not retaliate or threaten to retaliate against any person who has filed a complaint, has caused a complaint to be filed, has or will participate or testify in proceeding relating to a violation of the FMLI, or has given or is about to give information connected to a proceeding relating to a violation of the FMLI. If employees believe their FMLI rights have been violated, they should contact Human Resources immediately. The Company will investigate any FMLI complaints and take prompt and appropriate remedial action to address and/or remedy any FMLI violation. Employees also may file FMLI complaints with the FMLI Division alleging FMLI violations.